

IN THE SUPREME COURT OF PAKISTAN
(APPELLATE JURISDICTION)

PRESENT:

MR. JUSTICE YAHYA AFRIDI, CJ
MR. JUSTICE MUHAMMAD ALI MAZHAR
MR. JUSTICE MUHAMMAD SHAFI SIDDIQUI

CUO NO.1 OF 2025 IN CPLA NO.NIL OF 2025
(Office objection)

M/s Moon Dental Clinic, Islamabad & another

...Petitioner(s)

VERSUS

Additional District Judge, Islamabad-West & another

...Respondent(s)

For the Petitioner(s): Rana Abid Nazir, ASC

For the Respondent(s): Not represented

Date of Hearing: 12.12.2025

ORDER

YAHYA AFRIDI, CJ.- An objection was raised by the Office regarding the maintainability of the present Civil Petition for Leave to Appeal on the ground that the impugned judgment was rendered by the High Court under Article 199 of the Constitution in a rent matter, and thus, is not maintainable before this Court under the present constitutional dispensation, as introduced by the Twenty-Seventh Constitutional Amendment.

2. The contention so placed was that following the insertion of Article 175F by the Twenty-Seventh Constitutional Amendment, and in view of clause (1)(c) thereof, the High Court functions as the final judicial forum in rent matters, and as such, no appeal against a judgment pertaining to a rent matter lies before this Court. The office further took the position that while Article 185(3) confers a general appellate jurisdiction upon this Court, Article 175F(1)(c), being a specific provision introduced

subsequently, excludes rent matters from all appellate forums beyond the High Court altogether.

3. The aforesaid objection was overruled through a short order dated 12.12.2025, with detailed reasons to follow. These reasons are set out herein below.

4. The objection raised, first and foremost, requires a consideration of the relevant provisions of the Constitution. The appellate jurisdiction of the Supreme Court is laid down in Article 185 of the Constitution, which, for ease of reference, is reproduced as under:

185. Appellate Jurisdiction of the Supreme Court.

(1) Subject to this Article and Article 175F, the Supreme Court shall have jurisdiction to hear and determine appeals from judgments, decrees, final orders or sentences of a High Court.

(2) An appeal shall lie to the Supreme Court from any judgment, decree, final order or sentence of a High Court.

(a) if the High Court has on appeal reversed an order of acquittal of an accused person and sentenced him to death or to transportation for life or imprisonment for life; or, on revision, has enhanced a sentence to a sentence as aforesaid; or

(b) if the High Court has withdrawn for trial before itself any case from any court subordinate to it and has in such trial convicted the accused person and sentenced him as aforesaid; or

(c) if the High Court has imposed any punishment on any person for contempt of the High Court; or

(d) if the amount or value of the subject matter of the dispute in the court of first instance was, and also in dispute in appeal is, not less than one million rupees or such other sum as may be specified in that behalf by Act of Majlis-e-Shoora (Parliament) and the judgment, decree or final order appealed from has varied or set aside the judgment, decree or final order of the court or tribunal immediately below; or

(e) if the judgment, decree or final order involves directly or indirectly some claim or question respecting property of the like amount or value and the judgement, decree or final order appealed from has varied or set aside the judgment, decree or final order of the court or tribunal immediately below.

(3) An appeal to the Supreme Court, from a judgment, decree, order or sentence of a High Court in case to which clause (2) does not apply shall lie only if the Supreme Court grants leave to appeal:

Provided that no appeal shall lie to the Supreme Court in cases to which clause (1) of Article 175(F) applies.

(emphasis provided)

5. With the above in view, we may turn to Article 175-F(1) of the Constitution, which provides for the appellate jurisdiction of the Federal Constitutional Court and is reproduced as under:

175F. Appellate jurisdiction of the Federal Constitutional Court.

(1) The Federal Constitutional Court shall have jurisdiction to hear and determine appeals from judgments, decrees, final orders or sentences of a High Court as provided herein below:

(a) where an act of Majlis-e-Shoora (Parliament) so provides;

(b) if the High Court certifies that the case involves a substantial question of law as to the interpretation of the Constitution or

(c) from a judgment or an order of a High Court made under Article 199 only if the Federal Constitutional Court grants leave to appeal:

Provided that no appeal shall lie against a judgment or an order of a High Court made under Article 199, in a case which relates to rent and family except guardianship, and such other matters as may be determined by law.

(emphasis provided)

6. From a plain and textual reading of the provisions outlined above, the following understanding emerges: First, Article 185(3) of the Constitution operates as a general source of appellate jurisdiction of the Court in respect of judgments, decrees, orders or sentences of a High Court, subject to the exclusion contained in its provision, namely cases to which clause (1) of Article 175F applies. Article 175F(1), *supra*, in turn, sets out the appellate jurisdiction of the Federal Constitutional Court, and by virtue of the proviso to clause (1)(c), expressly excludes, *inter alia*, from its jurisdiction cases relating to rent and family matters.

7. The question that consequently arises and is at the heart of the present objection is, whether judgments or orders of a High Court pertaining to rent and family matters, which, by the reason of the express exclusion in its proviso, do not fall within the ambit of Article 175F(1) of the Constitution, and thus, are to be regarded as cases “to which clause (1) of Article 175F applies” for the purposes of the proviso to Article 185(3). Stated differently, the issue is whether the express exclusion of rent and family matters from the appellate jurisdiction of the Federal Constitutional Court operates to remove such matters altogether from the appellate framework beyond High Court, including the Supreme Court, or whether, by that very exclusion, they stand

outside the operation of Article 175(1), thereby attracting the appellate jurisdiction of this Court under Article 185(3), subject to grant of leave.

8. Since the controversy turns on the operation of two provisos, it is appropriate to briefly advert to the function of a proviso in general. A proviso necessarily operates in relation to the subject matter covered by the enacting part of the provision. Depending on its language and placement, a proviso may serve different purposes. Most commonly, however, and as is the case here, a proviso functions to qualify the generality of the main enactment by excepting certain matters from its operation. Such a proviso is commonly described as a “true proviso”. It is a recognised principle that a true proviso performs the function of carving out an exception which, but for the proviso, would fall within the language and scope of the enacting provision¹. In doing so, it qualifies the generality of the substantive provision by providing an exception and taking that exception out, as it were a portion, from the scope of applicability of the substantive provision.

9. Applying the foregoing understanding to the present case, the proviso to Article 175F(1)(c) which stipulates that: “*no appeal shall lie against a judgment or an order of a High Court made under Article 199, in a case which relates to rent and family,*” operates as a true proviso. It qualifies the generality of clause (1)(c) of Article 175F by expressly excluding rent and family matters from its scope. By the operation of this exclusion, the proviso takes rent and family matters out, as they were a portion, from the scope of applicability of Article 175F(1)(c) of the Constitution, thereby removing such matters from the operative field of that provision.

¹ *East and West Steamship Co. vs. Pakistan* (PLD 1958 SC (Pak.) 41)

10. Read in conjunction therewith, the proviso to Article 185(3), which provides that “*no appeal shall lie to the Supreme Court in cases to which clause (1) of Article 175F applies*”, makes it evident that the bar on the appellate jurisdiction of this Court is confined only to those cases which, in fact, fall within the ambit of Article 175F(1). Since rent and family matters stand expressly excluded from the applicability of Article 175F(1)(c), such cases cannot be regarded as cases to which Article 175F applies. Consequently, petitions arising out of rent and family matters are not barred from the appellate jurisdiction of this Court under Article 185(3), subject to the grant of leave.

11. For the foregoing reasons, the objection raised by the Office, premised on the petition arising out of a rent matter, was misconceived and was rightly overruled. In view of the express exclusion of rent matters from the scope of Article 175F(1)(c), such cases cannot be regarded as falling within Article 175F(1). The proviso to Article 185(3) is, therefore, not attracted, and the present petition is maintainable and shall proceed in accordance with law.

Chief Justice

Judge

Judge

Islamabad, the
12th of December, 2025
Approved for reporting.

Waqas